

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,

COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

JOINT MOTION FOR EXTENSION OF TIME

Complainant China United Lines, LTD (“China United” or “Complainant”) and Respondents Amazon.com Services LLC (“Amazon Services”), Amazon Logistics Inc. (“Amazon Logistics”), and Beijing Century Joyo Courier Service Co., Ltd. (“Beijing Century”) (collectively “Respondents”), by and through their undersigned counsel, hereby submit this Joint Motion for Extension of Time to permit an enlargement of time for briefing of Respondent’s motion to dismiss.

Pursuant to 46 C.F.R. § 502.102, motions for enlargement of time “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” China

United's deadline to file its opposition to Respondents' motion to dismiss is April 10, 2025, and Respondents' deadline for their reply is April 17, 2025, so both parties comply with the seven-day requirement.

On January 28, 2025, Complainant filed its amended complaint. On February 4, 2025, after conferring with counsel for Complainant, Respondents' filed an appearance and a motion for extension of time to respond to Complainant's amended complaint. Respondents' motion for extension was granted on February 5, 2025, extending the time to file the answer or to make a motion in response to the amended complaint to March 26, 2025. On March 26, 2025, Respondents filed their motion to dismiss.

The rules of the Federal Maritime Commission ("FMC"), 46 C.F.R. § 502.70(b), provide that a response to a dispositive motion must be filed no later than fifteen (15) days after service of the motion, in this case by April 10, 2025, with Respondents' reply due seven (7) days later, or by April 17, 2025, absent an enlargement of time pursuant to 46 C.F.R. § 502.102. The Parties have conferred as to the need for a short extension of the briefing schedule for the motion to dismiss. The Parties respectfully request that Complainant be granted an enlargement of seven (7) additional days to file its response, to April 17, 2025, and for Respondents to be granted an enlargement of four (4) additional days to April 29, 2025 to file their reply to Complainant's response.

The parties submit that good cause exists to grant the enlargement of time requested and that the additional time would not cause any undue prejudice or delay. Prior to Respondents' filing their motion for extension of time to answer the amended complaint on February 4, 2025, the parties met and conferred and mutually agreed on a proposed timeline that included the extension for Respondents to respond to the amended complaint, as well as an extension to the subsequent response deadline if Respondents filed a motion to dismiss. Respondents' motion for extension was

filed before the Parties reached final agreement on an unopposed motion to extend time for the Respondents, with a corresponding extension of one additional week for the Complainant.

The Parties agree that this will not cause any disadvantage to either side and further that granting the requested extension of time is consistent with the additional time granted to Respondents to prepare its motion to dismiss, and is necessary to provide additional time for Complainant and Respondents to fully brief the issues in the motion to dismiss.

For the reasons set forth above, the Parties respectfully request that the Joint Motion for Extension of Time be granted.

Dated: March 31, 2025

Respectfully Submitted,

HOLLAND & KNIGHT LLP

By: /s/ Vincent J. Foley
Vincent J. Foley
787 7th Avenue
New York, NY 10019
(212) 513-3357
vincent.foley@hklaw.com

Counsel for Complainant China United Lines Ltd.

K&L GATES LLP

By: /s/ John Longstreth
Michael F. Scanlon
John Longstreth
Christiana K. Goff
1601 K Street, N.W.
Washington, DC 20006
(202) 778-9000; (202) 778-9100 (fax)
michael.scanlon@klgates.com
john.longstreth@klgates.com
christi.goff@klgates.com

Counsel for Respondents

